VOL 6470 PG 779
OFFICIAL RECORDS

IN THE CIRCUIT COURT OF THE
FOURTH JUDICIAL CIRCUIT, IN
AND FOR DUVAL, NASSAU AND
CLAY COUNTIES, FLORIDA.

FILED
FEB 18 1988
CLERK CIRCUIT COURT

ADMINISTRATIVE ORDER NO. 88-2

In re: Florida Rule Civil Procedure 1.380
Failure to make discovery; sanctions.

WHEREAS, some attorneys in the Fourth Judicial Circuit have been dilatory in responding to interrogatories and motions to produce, thereby necessitating the unnecessary calendaring of motion to compel which, on many occasions, are cancelled because the motion to compel prompted compliance with the rule; and

WHEREAS, all judges present unanimously voted that this Administrative Order be entered to control the waste of judicial and lawyer time;

NOW, THEREFORE, by the authority vested in me by the Rules of Judicial Administration, it is

ORDERED:

1. Before filing a motion to compel pursuant to Rule 1.380, Florida Rules of Civil Procedure, or a motion for a protective order, as provided in Rule 1.280(c), Florida Rules of Civil Procedure, counsel for the moving party shall confer with counsel for opposing party in a good-faith effort to resolve by agreement the issues raised, and shall file with the court at the time of filing of the motion a statement certifying that he has so conferred with opposing counsel and that counsel have been unable to resolve the dispute.

2. When a motion has been placed on a judge's calendar, that motion may not be cancelled without the judge's consent.

3. As provided in Section (4) of Rule 1.380, if the motion is granted, the court shall award expenses which may include attorney's fees.

DONE AND ORDERED in Chambers at Jacksonville, Duval County, Florida, this January 27th, 1988.

CHIEF JUDGE

Ref. to Law Dept.